

Criminal Appeal (SJ) No. 412 of 2006

(Against the judgment of conviction dated 03.03.2006 and order of sentence dated 08.03.2006 passed by Sri Sada Sheo Rao, Additional Judicial Commissioner, Fast Track Court No.VII, Ranchi in Special Case No. 02/2000.

1. Harun Butt
2. Md. Akhtar ... Appellants

Versus

The State of Jharkhand ... Respondent

For the Appellants :Mr. Nilesh Kumar, Adv.
Mr. Avishek Prasad, Adv.
Ms. Alka Kumari, Adv.
For the State :Mr. Prabhu Dayal Agrawal, A.P. P.

PRESENT

HON'BLE MR. JUSTICE RAJESH KUMAR

Heard Mr. Nilesh Kumar, learned counsel for the appellants and Mr. Prabhu Dayal Agrawal, learned A.P.P., appearing for the State.

This appeal is directed against the judgment of conviction dated 03.03.2006 and order of sentence dated 08.03.2006 passed by Sri Sada Sheo Rao, Additional Judicial Commissioner, Fast Track Court No.VII, Ranchi in Special Case No. 02/2000 whereby and whereunder the appellants have been sentenced to undergo R.I. for six months for the offence u/s 22 (i) of N.D.P.S. Act and to pay a fine of Rs.10,000/- each, in default of payment of fine to serve further imprisonment for the period of two months each.

Special Case No.2/2000 arising out of Sadar P.S. Case No.15/2000 has been registered on the self information of Victor Anthony Inspector of Police of Lalpur Police Circle. As per the F.I.R., on 20.01.2000 at about 10.45 PM at Booty More adjacent to New Gumla Petrol Pump, on secret information, he conducted raid alongwith other police officials. In course of checking, the appellants tried to flee away from motor cycle but they were caught. On search, two puriya of brown sugar containing 1 gm each has been seized from the possession of Harun Butt (appellant No.1) and 1 puriya containing 1 gm from Md. Akhtar (appellant No.2).

After completion of investigation, appellants have been charged under Section 22 (i) of N.D.P.S. Act. Thereafter, cognizance has been taken. Case has been committed to the court of sessions and ultimately, charge has been framed under Section 22 (i) of N.D.P.S. Act to which appellants pleaded not guilty and claimed to be tried.

To substantiate the claim, prosecution has examined altogether nine witnesses.

At the outset, learned counsel for the appellants has not assailed the judgment of conviction rather has confined his prayer to the sentencing part. It has been argued that the incident is of the year 2000. The quantity of drugs involved in the case is small quantity. The appellants were aged about 46 and 48 years respectively at the time of incident and now they are aged about 60 years. They have suffered a lot due to long litigation period and further they have remained in custody during investigation for the period from 22.01.2000 to 03.02.2000 and after conviction from 03.03.2006 to 08.03.2006. They have deposited the fine amount of Rs.10,000/- which is maximum. The punishment of six months is also maximum as prevalent at that point of time. Further, the appellants are not habitual offender rather it is their first offence and as such the conviction of six months may be reduced to the period already undergone.

Learned A.P.P. has opposed the prayer and submission has been made that drug is menace to the society and no leniency should be shown in favour of the appellants.

Heard learned counsel for the parties.

From perusal of record, it is evident that the quantity of seized drugs is small quantity as 2gm have been seized from appellant no.1 and 1 gm from appellant no.2. No criminal antecedent has been brought on record in the present case. The appellants had remained in custody for more than 16 days in two different periods. They have already deposited the fine amount which is maximum i.e. Rs.10,000/-.

Considering the age and period of litigation, this Court feels that the goddess of justice will be satisfied if the conviction is reduced to the period already undergone.

Considering the entire materials available on record and age of the appellants and length of litigation, the order of sentence is modified to the extent that the conviction of six months is reduced to the period already undergone. Accordingly, the judgment of conviction dated 03.03.2006 and order of sentence dated 08.03.2006 passed by Sri Sada Sheo Rao, Additional Judicial Commissioner, Fast Track Court No.VII, Ranchi in Special Case No. 02/2000 is modified to the extent indicated hereinabove and the appeal stands partly allowed.

Since the appellants are already on bail, they are discharged from the liability of their bail bonds.

(Rajesh Kumar, J)